



Introduction to the Legal System 2

Session 12: Fundamental Rights and Freedoms



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1. Introduction

- In Mediaeval times it was the social classes and groups rather than the individual that were protected.
- The most significant product of those times was the *Magna Carta* (1215), the first attempt to protect the writ of *habeas corpus* and freedom of movement and to circumscribe the power of the Crown. These rights were extended to all individuals.
- The liberal concept of rights began with the English Bill of Rights in 1689.



1. Introduction

- With it, the idea that the protection of individual rights is an eminent and non-renounceable function of State organisation began to impose itself.
- In particular in 1791, just a few years after the approval of the US Constitution (1787), the first ten amendments (the American Bill of Rights) entered into effect to protect:
 - I. freedom of religion, press, speech, assembly;
 - II. freedom from excessive fines and forfeitures and from double jeopardy, as well as the right to bear arms, to be secure and to due process.



1. Introduction

- These freedoms were considered pre-existing conditions rather than rights sanctioned by the Bill of Rights (John Locke).
- In 1789 the Declaration of the Rights of Man and the Citizen was approved in France.
- The French Declaration was fundamentally a declaration of intent.
- In the years following 1789 the French Declaration was replaced by a series of subsequent Constitutions.
- The French model rapidly circulated throughout Europe.



1. Introduction

- After 1848 other constitutions were approved in various countries in Europe and in all of them the protection of basic rights was paramount, a good example being the French Constitution of 1848.
- The beginning of the 1900s and the post World War I period opened with a radically different international political alignment that called for new solutions in formulating rights. The most notable example is the German Constitution of 1919.



1. Introduction

- After World War II a new phase of constitutionalism began where unalienable rights formed the principal nucleus of constitutions, emphasising those ethical and social values on which society is built.
- The aim of any Constitution (written or unwritten) is to strike a balance between an individual's freedom to do whatever he/she wants, and the legal restrictions imposed upon that freedom for the protection of society as a whole.



2. Generation of Rights

- Rights can be classified also according to the generation they belong:
 - i. First generation;
 - ii. Second generation;
 - iii. Third generation;
 - iv. Fourth generation.



i. First Generation

- First generation rights are also called negative freedoms or civil and political rights.
- They are enshrined in the flexible Liberal State Constitutions.
- Let's have a look at the following Constitutions:
 - a. Albertine Statute of the Kingdom of Sardinia (and then of Italy) of 1848;
 - b. Constitution of Prussia of 1850;
 - c. Meiji Constitution of Japan of 1889.



i. Prussian Constitution-1850

- Art 5: All personal freedoms are guaranteed.
- Art 6: All homes are unassailable.
- Art 9: Property is sacred.
- Art 12: The freedom of religious beliefs and the formation of religious organizations is guaranteed.
- Art 20: Science and its instruction are free.
- Art 27: Every Prussian has the right to express free his thoughts verbally, written, printed and in picture.
- Art 70: Every Prussian has with the age of 25 the right to vote.



ii. Second Generation

- Second generation rights are also called positive freedoms or social and economic rights.
- They are enshrined in the rigid Democratic State Constitutions.
- Let's have a look at the following Constitutions:
 - a. Weimar Constitution of 1919;
 - b. Constitution of the French Fourth Republic of 1946 (see in particular the Preamble);
 - c. Constitution of Italy of 1948;
 - d. Basic Law of Germany of 1949.



ii. Italian Constitution - 1948

Article 38 [Welfare]

- (1) All citizens unable to work and lacking the resources necessary for their existence shall be entitled to private and social assistance.
- (2) Workers shall be entitled to adequate insurance for their needs in case of accident, illness, disability, old age, and involuntary unemployment.
- (3) Disabled and handicapped persons shall be entitled to education and vocational training.
- (4) The responsibilities laid down in this article shall be entrusted to public bodies and institutions established or supplemented by the State.



iii. Third Generation

- Third generation rights developed during the 70s constitutionalism and they are also known as new rights.
- They represent a broad spectrum of situations and include individual rights of a private nature (the right to one's image, honour and identity) as well as the collective or rights of peoples, for example the right to a clean environment or to peace.



iii. Third Generation

- Let's have a look at the following Constitutions:
 - a. Constitution of Portugal of 1976;
 - b. Constitution of South Africa of 1996.



iii. Portuguese Constitution - 1976

Article 35 (Use of Data Processing)

- (1) Without prejudice to the provisions of the law on State secrecy and justice secrecy, all citizens have the right of access to the data contained in automated data records and files concerning them as well as the right to be informed of the use for which they are intended; they are entitled to request that the contents thereof be corrected and brought up to date.
- (2) Access to personal data records or files are forbidden for purposes of getting information relating to third parties as well as for the interconnection of these files, save in exceptional cases as provided for in the law and in Article 18.
- (3) Data processing may not be used in regard to information concerning a person's philosophical or political convictions, party or trade union affiliations, religious beliefs, or private life, except in the case of non-identifiable data for statistical purposes.



iv. Fourth Generation

- In recent years, many authors have identified a fourth generation of rights.
- These are distinguished from rights of the previous generations not only because they have just recently been given the status of rights but also because their protection is intergenerational. Rights such as those of sustainable development or connected to new applications of research in biotechnology.



iv. Fourth Generation

- They do not exhaust themselves in the space of one generation, but on the contrary are aimed at promoting a responsibility and solidarity in the utilisation of resources and patrimony of mankind capable of protecting the needs of generations to come.
- Let's have a look at the following Constitutions:
 - a. Constitution of Argentina of 1998.



iv. Constitution of Argentina -1998

Section 41

- (1) All inhabitants are entitled to the right to a healthy and balanced environment fit for human development in order that productive activities shall meet present needs without endangering those of future generations; and shall have the duty to preserve it. As a first priority, environmental damage shall bring about the obligation to repair it according to law.
- (2) The authorities shall provide for the protection of this right, the rational use of natural resources, the preservation of the natural and cultural heritage and of the biological diversity, and shall also provide for environmental information and education



3. Basic Rights

- Basic rights can be classified in:
 - i. Individual rights;
 - ii. Rights of the Public Sphere;
 - iii. Social rights;
 - iv. Economic rights;
 - v. Political rights.



i. Individual rights

- Basic rights can be classified in:
 - i. Individual rights:
 - a. Personal Freedom;
 - b. Personal Domicile;
 - c. Freedom of Correspondence and Information;
 - d. Freedom of Movement, Residence and Expatriation.



i. Individual rights

a. Art. 13 Italian Const.

«Personal liberty is inviolable.

No one may be detained, inspected, or searched nor otherwise subjected to any restriction of personal liberty except by order of the Judiciary stating a reason and only in such cases and in such manner as provided by the law.

In exceptional circumstances and under such conditions of necessity and urgency as shall conclusively be defined by the law, the police may take provisional measures that shall be referred within 48 hours to the Judiciary for validation and which, in default of such validation in the following 48 hours, shall be revoked and considered null and void. Any act of physical and moral violence against a person subjected to restriction of personal liberty shall be punished.

The law shall establish the maximum duration of preventive detention.»



i. Individual rights

b. Art. 15 Italian Const.

«Freedom and confidentiality of correspondence and of every other form of communication is inviolable.

Limitations may only be imposed by judicial decision stating the reasons and in accordance with the guarantees provided by the law.»



ii. Rights of the Public Sphere

ii. Rights of the Public Sphere:

- a. Freedom of Assembly;
- b. Freedom of Association;
- c. Freedom of Religion and Creed;
- d. Freedom of Expression.



ii. Rights of the Public Sphere

b. Art. 18 Italian Const.

«Citizens have the right to form associations freely and without authorization

for those ends that are not forbidden by criminal law.

Secret associations and associations that, even indirectly, pursue political aims by means of organisations having a military character shall be forbidden.»

XII Transitional and Final Disposition

«It shall be forbidden to reorganise, under any form whatsoever, the dissolved Fascist party.

Notwithstanding Article 48, the law has established, for not more than five years from the implementation of the Constitution, temporary limitations to the right to vote and eligibility for the leaders responsible for the Fascist regime.»



ii. Rights of the Public Sphere

d. Art. 21 Italian Const.

«Anyone has the right to freely express their thoughts in speech, writing, or any other form of communication.

The press may not be subjected to any authorisation or censorship.

Seizure may be permitted only by judicial order stating the reason and only for offences expressly determined by the law on the press or in case of violation of the obligation to identify the persons responsible for such offences.

In such cases, when there is absolute urgency and timely intervention of the Judiciary is not possible, a periodical may be confiscated by the criminal police, which shall immediately and in no case later than 24 hours refer the matter to the Judiciary for validation. In default of such validation in the following 24 hours, the measure shall be revoked and considered null and void.

The law may introduce general provisions for the disclosure of financial sources of periodical publications.

Publications, performances, and other exhibits offensive to public morality shall be prohibited. Measures of preventive and repressive measure against such violations shall be established by law.»



iii. Social Rights

iii. Social rights:

- a. Education;
- b. Healthcare;
- c. Welfare;
- d. Housing.



iv. Economic Rights

v. Political Rights

iv. Economic rights:

a. Right to Property;

b. Freedom of Enterprise;

c. The Market and Competition;

d. Trade Union Rights.

v. Political rights.